

Evidence-Led Governance

A Research Methodology for Analysing Statutory Administration

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Version 1.23

Structured · Traceable · Governed

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Preface

Every system of public administration leaves a record.

Legislation establishes authority. Courts define legal meaning. Institutions translate legal obligations into administrative practice. Decisions are made, evidence is gathered, reasons are recorded and public power is exercised.

Yet these stages are often studied in isolation.

Legal research commonly examines legislation, judicial decisions or institutional policy separately. Administrative investigations frequently focus on individual decisions without reconstructing the legal framework from which those decisions arose. Documentary records are often treated as evidence of isolated events rather than as components of a continuous system of governance.

This handbook proceeds from a different premise.

It proposes that public administration can be understood only by examining the complete pathway through which legal obligations become institutional action.

That pathway begins with law but does not end there.

Between legislation and lived reality stand institutions, administrative procedures, documentary evidence and mechanisms of review. Each stage contributes something distinct. None should be collapsed into another.

The purpose of this handbook is therefore not simply to explain legal rules. It is to present a methodology for reconstructing statutory administration through authoritative legal sources, institutional design and documentary evidence.

The work has been developed through the examination of multiple independent statutory frameworks, including victims' rights, criminal injuries compensation, housing law and administrative justice. Each framework was examined independently. Yet each revealed the same underlying architecture.

This recurring architecture did not arise from assumption.

It emerged from the evidence.

Throughout this handbook, legislation is distinguished from judicial interpretation. Judicial interpretation is distinguished from institutional design. Institutional design is distinguished from administrative practice. Documentary evidence is distinguished from inference.

Only after those stages have been reconstructed are conclusions reached.

The methodology therefore does not begin by asking whether an institution succeeded or failed.

It begins by asking:

What legal obligation exists?

How has it been interpreted?

How has it been translated into institutional design?

How is it administered?

What does the documentary record establish?

What conclusions are justified when those elements are examined together?

The objective is not advocacy.

The objective is understanding.

If the governing framework is accurately reconstructed and the evidential record faithfully preserved, the structure of governance becomes visible.

This handbook is an invitation to undertake that reconstruction.

It is intended for researchers, public administrators, lawyers, policymakers, oversight bodies and any person seeking to understand how statutory administration operates in practice.

Its central proposition is simple.

Rights are realised through administration, and administration becomes accountable through evidence.

The chapters that follow are an attempt to demonstrate that proposition through careful examination of authoritative legal sources and the documentary record they ultimately produce.

Statement of Method

1.1 Introduction

This handbook adopts an evidence-led methodology for analysing statutory administration.

Its purpose is not to advocate predetermined conclusions, nor to evaluate institutions by reference to assumption, opinion or isolated events.

Instead, it reconstructs the legal and administrative framework governing a statutory function before any conclusion is reached.

The methodology recognises that public administration is a continuous legal process extending beyond legislation alone. Statutes establish powers and duties. Courts define their legal meaning. Institutions translate those legal obligations into operational systems. Administrative decisions apply those systems to individual circumstances. Documentary records preserve the exercise of those powers. Independent review evaluates whether the process remained lawful.

Each stage contributes distinct information.

Each stage must therefore be examined independently before the relationship between them can be understood.

1.2 Purpose

The purpose of this methodology is to reconstruct governance rather than merely describe it.

The objective is to identify:

the legal obligation created by law;

the judicial interpretation of that obligation;

the institutional structures created to implement it;

the administrative processes through which it operates;

the documentary evidence generated by those processes;

the extent to which the evidential record corresponds with the governing legal framework.

Only after those stages have been completed are conclusions drawn.

The methodology therefore proceeds from reconstruction to evaluation rather than from allegation to confirmation.

1.3 Foundational Principles

The methodology is governed by the following principles.

Principle 1 — Authority before commentary

Primary legal sources take precedence over commentary.

Legislation, judicial decisions, constitutional provisions, regulations and official reports establish the governing framework.

Secondary commentary may assist interpretation but does not replace the primary sources.

Principle 2 — Each source remains independent

Every authoritative source contributes only what it is competent to establish.

Legislation creates obligations.

Courts interpret legislation.

Institutional reports describe administrative structures.

Documentary evidence records events.

No source should be required to establish matters beyond its own authority.

Principle 3 — Distinction between legal functions

Throughout this handbook, clear distinctions are maintained between:

legislation;

judicial interpretation;

institutional design;

administrative practice;

documentary evidence;

analytical inference.

These categories are related but not interchangeable.

Maintaining those distinctions preserves analytical clarity.

Principle 4 — Evidence before inference

Documentary evidence establishes:

what occurred;

what was communicated;

what decisions were recorded;

what procedures were followed.

Inference begins only after the evidential record has been reconstructed.

Where evidence does not establish a proposition, the handbook does not present that proposition as fact.

Principle 5 — Conclusions emerge from reconstruction

The methodology deliberately postpones conclusions.

Each chapter first reconstructs the governing legal framework.

Only after legislation, judicial interpretation, institutional design, administrative practice and documentary evidence have been examined together does evaluative analysis begin.

The destination therefore emerges from the evidence rather than preceding it.

1.4 Research Sequence

The methodology proceeds through six sequential stages.

Stage One — Identify the Legal Obligation

The first task is to identify the authoritative legal source.

Depending upon the statutory framework, this may include:

constitutional provisions;

European Union law;

legislation;

delegated legislation;

binding regulations.

The question asked is:

Stage Two — Examine Judicial Interpretation

Legislation establishes legal duties.

Courts determine how those duties are to be understood.

Judicial interpretation therefore defines:

legal meaning;
 limits of discretion;
 procedural requirements;
 governing principles.

The question becomes:

Stage Three — Analyse Institutional Design

Statutory obligations require institutional implementation.

Institutional design includes:

statutory bodies;
 governance arrangements;
 operational procedures;
 published guidance;
 organisational responsibilities.

This stage asks:

Stage Four — Reconstruct Administrative Practice

Institutional design must then be distinguished from actual administration.

Administrative practice includes:

applications;
 assessments;
 correspondence;
 decision-making;
 implementation;
 review procedures.

The question asked is:

Stage Five — Preserve and Evaluate Documentary Evidence

Administrative activity produces documentary records.

These records include:

applications;

decisions;

reports;

emails;

policies;

notices;

timelines;

supporting evidence.

The documentary record allows reconstruction of the exercise of public power.

It provides the evidential basis for later evaluation.

Stage Six — Governance Analysis

Only after the preceding stages have been completed are conclusions reached.

Governance analysis compares:

the governing legal framework;

with

institutional structures;

with

administrative practice;

with

documentary evidence.

The objective is to determine whether the administration observed the legal framework revealed by the earlier stages.

1.5 The Role of Documentary Evidence

Documentary evidence occupies a distinct position within this methodology.

It neither creates legal obligations nor interprets legislation.

Instead, it records the exercise of public power.

The record therefore performs two essential functions.

First, it preserves institutional memory.

Secondly, it permits independent examination of whether administration corresponded with the governing legal framework.

The documentary record is therefore treated as an independent evidential category rather than as commentary upon legal obligations.

1.6 Analytical Discipline

This methodology requires continual analytical discipline.

Accordingly:

legislation is not treated as evidence of administrative performance;

judicial interpretation is not treated as legislation;

institutional policy is not treated as legal obligation;

documentary evidence is not treated as proof of legal conclusions without analysis;

inference is distinguished from established fact.

These distinctions protect both the integrity of the research and the integrity of the institutions being examined.

1.7 Scope

This handbook is a methodology for analysing statutory administration.

It is not intended to provide legal advice or determine the outcome of any individual dispute.

Instead, it provides a structured method through which statutory systems may be reconstructed, understood and evaluated using authoritative legal sources and documentary evidence.

The methodology is intended to be applicable across multiple areas of public administration, including but not limited to:

victims' rights;

compensation;

housing;

health;

planning;

policing;

local government;
regulatory administration;
and other statutory frameworks.

1.8 Closing Statement

The methodology presented in this handbook proceeds from a single proposition.

Public administration cannot be understood by examining legislation alone.

Nor can it be understood solely through judicial decisions, institutional policy or documentary evidence in isolation.

Governance becomes visible only when those elements are reconstructed as parts of a continuous legal and administrative process.

For that reason, this handbook does not begin with conclusions.

It begins with authoritative legal sources.

Each source is examined independently.

Judicial interpretation is distinguished from legislation.

Institutional design is distinguished from administration.

Documentary evidence is distinguished from inference.

Only after the governing legal framework and the evidential record have been reconstructed do conclusions emerge.

That discipline defines the methodology adopted throughout this handbook.

VOLUME I

Foundations of Evidence-Led Governance

Introduction to Volume I

Every statutory system operates through a sequence of legal and administrative relationships.

Legislation alone does not deliver rights.

Judicial interpretation alone does not implement statutory obligations.

Institutions alone do not create legality.

Nor does documentary evidence, considered in isolation, explain governance.

Each performs a distinct function within a continuous legal process.

The purpose of this volume is to identify the recurring architecture through which statutory administration operates.

The chapters that follow do not analyse a single institution or area of law.

Instead, they identify the structural principles that repeatedly emerged from the independent examination of victims' rights, criminal injuries compensation, housing law and administrative justice.

These principles form the conceptual framework for the remainder of the handbook.

They are not presented as abstract theories.

They emerged through the systematic reconstruction of authoritative legal sources, institutional structures and documentary evidence.

Chapter 1 — Why This Handbook Exists

1.1 The Problem

Public administration is frequently examined through individual decisions, isolated complaints or specific legal disputes.

While such analysis is often valuable, it rarely reconstructs the complete legal pathway through which statutory obligations become administrative action.

As a consequence, governance is frequently understood only in fragments.

Legislation may be examined without considering institutional implementation.

Administrative decisions may be criticised without identifying the governing legal framework.

Documentary evidence may be reviewed without distinguishing recorded fact from legal obligation.

Judicial decisions may be discussed without recognising the administrative structures to which they apply.

Each of these approaches provides part of the picture.

None provides the whole.

1.2 The Missing Relationship

Throughout the research underlying this handbook, one recurring question emerged.

How does a legal obligation become lived administrative reality?

The answer was not contained within legislation alone.

Nor was it found exclusively within judicial interpretation.

Instead, the research revealed a continuous sequence extending from legal authority to institutional practice.

That sequence became visible only when legislation, judicial interpretation, institutional design, administration and documentary evidence were examined together.

1.3 A Different Way of Reading Governance

This handbook therefore adopts a different perspective.

Rather than asking:

Was the institution right?

It first asks:

What was the institution legally required to do?

Rather than beginning with criticism, it begins with reconstruction.

Rather than beginning with conclusions, it begins with authoritative sources.

This distinction is fundamental.

Evaluation follows reconstruction.

It never replaces it.

1.4 The Discovery

As multiple statutory frameworks were examined, an unexpected pattern emerged.

Victims' rights.

Compensation.

Housing.

Administrative justice.

Each was created independently.

Each operates under different legislation.

Each is administered by different institutions.

Yet each revealed the same underlying architecture.

That recurring architecture forms the basis of this handbook.

It is not presented as an assumption.

It is presented as the result of repeated observation across independent legal frameworks.

1.5 The Central Proposition

The research conducted throughout this handbook supports the following proposition.

Rights are not realised merely because legislation recognises them. Rights become effective only when institutions possess the legal authority, administrative capacity and evidential governance necessary to deliver them.

This proposition does not diminish the importance of legislation.

Rather, it recognises that legislation is the beginning of governance rather than its conclusion.

1.6 The Governance Continuum

The research repeatedly identified a continuous sequence.



Each stage depends upon the integrity of those before it.

Failure at any stage weakens the operation of the whole.

1.7 Why This Matters

Modern democratic societies increasingly depend upon complex statutory systems.

Housing.

Health.

Education.

Policing.

Planning.

Environmental regulation.

Victims' rights.

Social protection.

Each relies upon institutions exercising public power.

Understanding those systems therefore requires more than identifying legal rules.

It requires understanding the pathway through which law becomes administration.

This handbook is written to explain that pathway.

1.8 Research Finding

The examination of multiple independent statutory frameworks demonstrates that governance cannot be understood through legislation, administration or documentary evidence in isolation.

Instead, governance emerges from the relationship between legal authority, institutional design, administrative practice, documentary evidence and independent review.

That recurring relationship forms the foundation of the Evidence-Led Governance methodology.

GOVERNANCE PRINCIPLE NO. 1

GP-1 — RIGHTS REQUIRE GOVERNANCE

A right does not exist because it is written. It exists when institutions can deliver it.

Legislation creates the obligation. Administration delivers the obligation. Evidence shows whether it occurred.

Chapter 2 — The Governance Architecture

2.1 Introduction

Every system of statutory administration possesses an internal structure.

That structure is rarely described in legislation itself.

Nor is it fully explained by judicial decisions, institutional reports or documentary evidence when each is examined in isolation.

Throughout the research presented in this handbook, a recurring pattern emerged across multiple independent statutory frameworks.

The same sequence appeared in victims' rights, criminal injuries compensation, housing law and administrative justice.

The repetition of that sequence suggested the presence of an underlying governance architecture.

This chapter describes that architecture.

It is not presented as an abstract theory.

It is presented as the recurring structure revealed through the examination of authoritative legal sources.

2.2 Governance as Relationship

Governance is often described as decision-making, management or institutional oversight.

This handbook adopts a different understanding.

Governance is not a single institution.

Nor is it a single decision.

Governance is the relationship between:

legal authority;

institutional responsibility;

administrative practice;

documentary evidence;

independent review.

No single element is sufficient.

Only their relationship explains how statutory administration operates.

CANONICAL DEFINITION

CD-1 — Governance

Governance is the continuous relationship between legal authority, institutional design, administrative practice, documentary evidence and independent review through which statutory obligations are translated into accountable public administration.

2.3 The Governance Continuum

The research repeatedly revealed the same progression.



Governance

learns

Each stage depends upon those preceding it.

None can be removed without weakening the integrity of the whole.

GOVERNANCE ARCHITECTURE

GA-1 — The Governance Continuum

This architecture forms the structural model used throughout this handbook.

2.4 The Function of Each Stage

Law

Legislation establishes the legal obligation.

It creates the statutory powers, duties and responsibilities that govern institutional behaviour.

Without legal authority there can be no lawful exercise of public power.

Authority

Authority provides the legal capacity to act.

It is always derived from law.

Authority is therefore delegated rather than inherent.

Institutions

Institutions transform legal obligations into operational systems.

They establish governance arrangements, procedures and organisational responsibilities through which statutory functions may be performed.

Administration

Administration performs the statutory function.

Applications are received.

Evidence is gathered.

Assessments are undertaken.

Decisions are reached.

Administration therefore becomes the point at which legal obligations enter lived experience.

Evidence

Administrative activity produces evidence.

Correspondence.

Applications.

Reports.

Decisions.

Policies.

Records.

Evidence documents the exercise of public power.

Reasons

Reasons explain why statutory authority produced a particular decision.

They connect:

evidence

to

judgment.

Without reasons the pathway between evidence and decision becomes incomplete.

Documentary Record

The documentary record preserves institutional memory.

It enables later reconstruction of:

legal authority;

administrative process;

evidence;

reasoning;

decision-making.

Without preservation, governance cannot be examined.

Independent Review

Independent review examines legality.

It reconstructs the pathway preserved by the documentary record.

Its function is not to recreate administration.

Its function is to determine whether public power remained within the governing legal framework.

Governance

Governance represents institutional learning.

Review informs future administration.

Administration improves institutional practice.

The cycle therefore continues.

Governance is not static.

It evolves through evidence.

2.5 Relationships Rather Than Hierarchies

One of the most significant findings emerging from this research is that governance should not be understood as a hierarchy alone.

Instead it should be understood as a continuous relationship.

Each stage informs the next.

Each stage depends upon the integrity of those before it.

Governance therefore resembles a continuous evidential chain rather than a series of isolated administrative acts.

2.6 Traceability

Every administrative decision should remain traceable.

Decision



Reasons



Evidence



Administrative Procedure**Institutional Responsibility****Legal Authority**

Traceability therefore performs two functions.

It supports legality.

It supports accountability.

GOVERNANCE PRINCIPLE**GP-2 — Power Must Remain Traceable**

Every exercise of public power should remain connected to the legal authority from which it derives.

Evidence records that exercise.

Reasons explain it.

The documentary record preserves it.

Review examines it.

Governance learns from it.

2.7 Institutional Memory

Repeated examination of multiple statutory frameworks demonstrated that governance depends upon continuity.

Institutions cannot administer consistently if they cannot remember.

Institutional memory is therefore not merely administrative convenience.

It is a condition of accountable governance.

CANONICAL DEFINITION**CD-2 — Institutional Memory**

Institutional Memory is the preserved documentary record through which the exercise of public power remains capable of reconstruction, explanation and independent review.

2.8 Research Finding

RESEARCH FINDING

RF-2

The examination of independent statutory frameworks demonstrates that governance consistently operates through a recurring sequence linking legal authority, institutional responsibility, administration, evidence, reasons, documentary preservation and independent review.

This architecture appears to be general rather than subject-specific.

2.9 Chapter Synthesis

This chapter has established the conceptual architecture that will guide every subsequent volume of the handbook.

It demonstrates that governance is not reducible to legislation, institutions or administration considered separately.

Instead, governance emerges from the continuous relationship between those elements.

The recurring architecture identified in this chapter provides the analytical framework through which victims' rights, compensation, housing, administrative justice and future statutory systems will be examined.

Chapter 3 — The Evidence-Led Governance Methodology

3.1 Introduction

Every discipline is distinguished by its methodology.

Medicine relies upon clinical investigation.

History relies upon documentary reconstruction.

Science relies upon observation, experimentation and verification.

Evidence-Led Governance is distinguished by a methodology designed to reconstruct statutory administration before reaching evaluative conclusions.

The methodology developed throughout this handbook does not begin with criticism, advocacy or predetermined outcomes.

Instead, it proceeds through a structured sequence of legal and evidential reconstruction.

The objective is to understand governance before evaluating it.

3.2 Why Methodology Matters

Governance cannot be evaluated reliably through isolated documents or individual administrative decisions.

Nor can legislation, judicial interpretation or institutional practice be understood independently of one another.

Each represents only one part of a continuous legal process.

Accordingly, this methodology requires that every stage be reconstructed before conclusions emerge.

This discipline protects the integrity of both the research and the institutions being examined.

3.3 Reconstruction Before Evaluation

The defining characteristic of this methodology is that reconstruction precedes evaluation.

The research therefore asks:

First

What legal obligation exists?

Then

How has that obligation been interpreted?

Then

How has it been translated into institutional design?

Then

How is that design implemented through administration?

Then

What documentary evidence records that administration?

Only then is the final question asked.

What conclusions are supported by the reconstructed framework and the evidential record?

This ordering is deliberate.

Changing the order changes the character of the research.

Beginning with conclusions risks confirmation bias.

Beginning with reconstruction promotes analytical discipline.

RESEARCH METHODOLOGY

RM-1 — Reconstruction Precedes Evaluation

No evaluative conclusion should be reached until the governing legal framework and the evidential record have been independently reconstructed.

3.4 The Six Stages of Evidence-Led Governance

The methodology proceeds through six sequential stages.

Stage One — Legal Authority

Identify the governing legal obligation.

Sources include:

constitutions;

legislation;
 regulations;
 directives;
 statutory instruments.

Question:

What does the law require?

Stage Two — Judicial Interpretation

Determine how courts have interpreted those obligations.

Question:

How has the legal obligation been understood?

Stage Three — Institutional Design

Identify the institutions responsible for implementation.

Examine:

statutory bodies;
 governance structures;
 published procedures;
 organisational responsibilities.

Question:

How has the legal obligation been translated into institutional practice?

Stage Four — Administrative Practice

Reconstruct how statutory responsibilities are exercised.

Examples include:

applications;
 investigations;
 assessments;
 communications;

decision-making;
review procedures.

Question:

How does administration perform the statutory function?

Stage Five — Documentary Evidence

Reconstruct the documentary record.

This includes:

correspondence;

reports;

applications;

policies;

notices;

decisions;

timelines.

Question:

What does the record establish?

Stage Six — Governance Analysis

Only after the preceding stages are complete does governance analysis begin.

The reconstructed legal framework is compared with the documentary record.

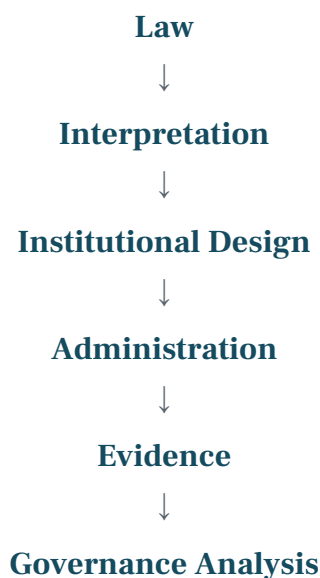
Question:

Does the evidence demonstrate correspondence between statutory obligation and administrative practice?

GOVERNANCE ARCHITECTURE

GA-2 — Evidence-Led Governance Methodology

This sequence forms the methodological framework adopted throughout the handbook.



3.5 Distinguishing Evidence from Inference

One of the defining characteristics of this methodology is the distinction between evidence and inference.

Evidence establishes:

what occurred;

what was recorded;

what was communicated.

Inference explains:

relationships;

implications;

governance conclusions.

The distinction is essential.

Research loses integrity when inference is presented as evidence.

RESEARCH METHODOLOGY

RM-2 — Evidence Before Inference

Inference begins only after the documentary record has been reconstructed.

3.6 Independence of Sources

Each source contributes something different.

Legislation creates obligations.

Courts interpret those obligations.

Institutions design administrative systems.

Administrative practice exercises statutory powers.

Documentary evidence records those exercises.

No source substitutes for another.

RESEARCH METHODOLOGY

RM-3 — Independent Authority

Every authoritative source contributes only what it is competent to establish.

3.7 Traceability

Every conclusion should remain traceable.



Readers should be capable of reconstructing every conclusion independently.

RESEARCH METHODOLOGY

RM-4 — Traceability

Every analytical conclusion should remain capable of being traced to the authoritative sources upon which it depends.

3.8 Repeatability

Perhaps the strongest test of a methodology is whether it remains effective when applied to unrelated statutory frameworks.

This methodology has now been applied to:

Victims' Rights;

Criminal Injuries Compensation;

Housing Law;

Administrative Justice.

Despite their different legal contexts, each revealed the same recurring governance architecture.

The methodology therefore demonstrates repeatability across independent areas of statutory administration.

RESEARCH FINDING

RF-3

Evidence-Led Governance is capable of reconstructing multiple independent statutory systems through a common analytical framework.

3.9 The Role of the Researcher

The researcher does not determine the destination.

The researcher reconstructs the pathway.

The distinction is fundamental.

The methodology therefore requires restraint.

The objective is not to persuade.

The objective is to understand.

Conclusions arise because the governing framework and the documentary record point towards them.

RESEARCH METHODOLOGY**RM-5 — The Researcher's Discipline**

The role of the researcher is to reconstruct statutory administration faithfully before attempting to evaluate it.

3.10 Chapter Synthesis

The methodology presented in this chapter provides the operational framework for every volume that follows.

It establishes:

- the order of analysis;
- the distinction between authoritative sources;
- the independence of documentary evidence;
- the discipline of reconstruction;
- the traceability of conclusions.

The methodology therefore becomes more than a research technique.

It becomes the mechanism through which statutory governance is made intelligible.

GOVERNANCE PRINCIPLE**GP-3 — THE PATHWAY PRECEDES THE CONCLUSION**

Understanding does not begin with answers.

It begins with reconstruction.

Law defines the obligation.

Evidence records its exercise.

Governance emerges only after the pathway has been faithfully rebuilt.

Chapter 4 — Governance Principles

4.1 Introduction

The preceding chapters established the methodology through which statutory administration is reconstructed and analysed.

During that process, a number of recurring principles emerged.

These principles did not arise from abstract theory.

They emerged independently through the examination of victims' rights, criminal injuries compensation, housing law and administrative justice.

Although each statutory framework possessed its own legislation, institutions and procedures, the same governance principles appeared repeatedly.

This chapter consolidates those principles into a common framework.

They are referred to throughout the remainder of this handbook as Governance Principles (GP).

Each principle represents a recurring proposition supported by the research undertaken in earlier chapters and applied throughout the later volumes.

GOVERNANCE PRINCIPLE

GP-1 — Rights Require Governance

Rights do not become effective solely because legislation recognises them.

They become effective only when institutions possess the legal authority, administrative capacity and evidential governance necessary to deliver them.

Governance therefore represents the operational condition through which legal rights become practical reality.

Statement

A right does not exist in practice because it is written. It exists when institutions can deliver it.

GOVERNANCE PRINCIPLE**GP-2 — Power Must Remain Traceable**

Every exercise of public power should remain capable of reconstruction.

Authority should be traceable to legislation.

Administration should be traceable to institutional responsibility.

Decisions should be traceable to evidence.

Reasons should be traceable to statutory purpose.

The documentary record preserves this continuity.

Traceability therefore protects both legality and accountability.

Statement

Every exercise of public power should remain connected to the legal authority from which it derives.

GOVERNANCE PRINCIPLE**GP-3 — The Pathway Precedes the Conclusion**

Evidence-Led Governance begins with reconstruction rather than evaluation.

Legal obligations are identified before institutions are assessed.

Administrative pathways are reconstructed before conclusions are drawn.

The methodology therefore avoids beginning with predetermined outcomes.

Statement

Understanding begins with reconstruction, not with conclusions.

GOVERNANCE PRINCIPLE**GP-4 — The Law Creates the Obligation**

Throughout every statutory framework examined, legislation performed the same constitutional function.

It created legal duties.

Neither institutions nor courts create statutory obligations.

Institutions implement them.

Courts interpret them.

The distinction preserves constitutional order.

Statement

Legislation creates the obligation. Judicial interpretation explains its meaning. Institutions build their practice upon it.

GOVERNANCE PRINCIPLE**GP-5 — Evidence Preserves Governance**

Governance cannot be examined unless the exercise of public power is preserved.

Documentary evidence performs this function.

Applications.

Correspondence.

Reports.

Policies.

Reasons.

Decisions.

Together they preserve institutional memory.

Without evidence, governance cannot be reconstructed.

Statement

Evidence preserves the exercise of public power.

GOVERNANCE PRINCIPLE**GP-6 — Reasons Preserve Accountability**

Administrative decisions become intelligible through reasons.

Reasons explain:

the statutory authority;

the relevant evidence;

the exercise of judgment;

the resulting decision.

Without reasons, accountability becomes significantly more difficult.

Statement

Reasons connect evidence to judgment and judgment to accountability.

GOVERNANCE PRINCIPLE**GP-7 — Consistency Builds Trust**

Institutions develop legitimacy through consistency.

Policies.

Procedures.

Representations.

Administrative practice.

When these remain consistent with statutory authority, public confidence increases.

Where change becomes necessary, reasons preserve fairness.

Statement

Institutional trust depends upon lawful consistency.

GOVERNANCE PRINCIPLE**GP-8 — Review Preserves the Rule of Law**

Independent review examines the legality of public administration.

It protects:

statutory authority;

procedural fairness;

evidence;

reasons;

accountability.

Review therefore strengthens governance rather than replacing it.

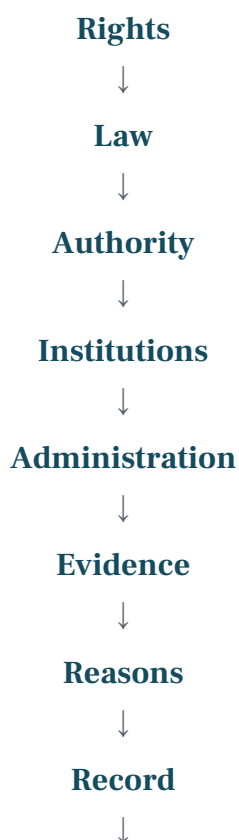
Statement

The Rule of Law is preserved through independent review of public power.

4.2 Relationship Between the Principles

The Governance Principles are not independent propositions.

They form a continuous sequence.



Review



Governance

Each principle strengthens those surrounding it.

Together they describe the recurring architecture of statutory administration identified throughout this handbook.

4.3 Research Finding

RESEARCH FINDING

RF-4

Independent statutory frameworks repeatedly reveal the same foundational governance principles despite differences in subject matter, institutional responsibility and legislative purpose.

This consistency supports the proposition that the principles identified in this chapter are general characteristics of statutory governance rather than features unique to individual legal systems.

4.4 Chapter Synthesis

The Governance Principles established in this chapter provide the conceptual vocabulary for the remainder of the handbook.

Subsequent volumes will not redefine these principles.

Instead, they will demonstrate how each principle operates within specific statutory frameworks.

The principles therefore serve both as analytical tools and as reference points through which later chapters may be understood and compared.

Chapter 5 — Canonical Definitions

5.1 Introduction

Every scholarly discipline develops a shared vocabulary.

Legal systems define concepts through legislation and judicial interpretation.

Scientific disciplines establish technical terminology to ensure that researchers use common language.

Evidence-Led Governance requires the same discipline.

The following definitions are referred to throughout this handbook.

They are not intended to replace statutory definitions where legislation provides one.

Rather, they establish how recurring concepts are used within this methodology.

These definitions remain constant throughout every subsequent volume.

CANONICAL DEFINITION

CD-1 — Governance

Governance is the continuous relationship between legal authority, institutional design, administrative practice, documentary evidence and independent review through which statutory obligations are translated into accountable public administration.

Governance is therefore understood as a relationship rather than an institution or isolated administrative act.

CANONICAL DEFINITION

CD-2 — Evidence-Led Governance

Evidence-Led Governance is a methodology for reconstructing statutory administration by examining authoritative legal sources, judicial interpretation, institutional design, administrative practice and documentary evidence before reaching evaluative conclusions.

Its defining characteristic is reconstruction before evaluation.

CANONICAL DEFINITION

CD-3 — Legal Authority

Legal Authority is the lawful power created by constitutions, legislation, delegated legislation or other recognised legal sources enabling institutions to exercise public functions.

Authority always derives from law.

It is never assumed.

CANONICAL DEFINITION

CD-4 — Institutional Design

Institutional Design is the organisational structure through which statutory obligations are translated into administrative capability.

It includes:

- statutory bodies;
- governance arrangements;
- operational responsibilities;
- published procedures;
- administrative systems.

Institutional Design explains how legal obligations become operational functions.

CANONICAL DEFINITION

CD-5 — Administrative Practice

Administrative Practice is the day-to-day exercise of statutory powers by institutions acting within their lawful authority.

Administrative practice includes:

- receiving applications;
- conducting investigations;
- gathering evidence;
- communicating with affected persons;
- making decisions;
- implementing statutory duties.

Administrative practice should always remain distinguishable from institutional design.

CANONICAL DEFINITION

CD-6 — Documentary Evidence

Documentary Evidence consists of records generated during the exercise of statutory administration.

Examples include:

- applications;
- correspondence;
- reports;
- policies;
- decisions;
- notices;
- meeting records;
- timelines.

Within this methodology, documentary evidence is treated as an independent evidential category. It records the exercise of public power rather than creating legal obligations.

CANONICAL DEFINITION

CD-7 — Institutional Memory

Institutional Memory is the preserved documentary record through which previous administrative activity remains capable of reconstruction, explanation and independent review.

Institutional memory enables continuity.

Without preservation, governance becomes fragmented.

CANONICAL DEFINITION

CD-8 — Reasons

Reasons are the explanation connecting legal authority, evidence and judgment to an administrative decision.

Reasons demonstrate:

- the statutory framework;
- the relevant evidence;
- the exercise of discretion;
- the pathway to the decision.

Reasons therefore support transparency and accountability.

CANONICAL DEFINITION

CD-9 — Governance Architecture

Governance Architecture is the recurring structural relationship identified between:

Law



Authority



Institutional Design



Administration



Evidence



Reasons



Documentary Record



Review



Governance

This architecture provides the analytical model used throughout this handbook.

CANONICAL DEFINITION

CD-10 — Traceability

Traceability is the ability to reconstruct every stage of administrative decision-making from the governing legal authority through to the documentary record and subsequent review.

Traceability is a necessary condition of accountable governance.

CANONICAL DEFINITION**CD-11 — Reconstruction**

Reconstruction is the analytical process of rebuilding the complete statutory and administrative pathway before evaluation begins.

Reconstruction requires examination of:

- legal obligations;
- judicial interpretation;
- institutional design;
- administrative practice;
- documentary evidence.

Only after reconstruction is complete does governance analysis begin.

CANONICAL DEFINITION**CD-12 — Governance Analysis**

Governance Analysis is the comparison between the reconstructed legal framework and the documentary record to determine whether statutory administration corresponds with the governing legal obligations.

Governance Analysis is therefore the final stage of the Evidence-Led Governance methodology.

5.2 Relationship Between Definitions

The Canonical Definitions should not be understood as independent concepts.

They form an integrated vocabulary.

Legal Authority creates Institutional Design.

Institutional Design enables Administrative Practice.

Administrative Practice produces Documentary Evidence.

Documentary Evidence preserves Institutional Memory.

Institutional Memory supports Traceability.

Traceability enables Governance Analysis.

Governance Analysis strengthens Governance.

The definitions therefore describe one continuous administrative relationship.

RESEARCH FINDING**RF-5**

The repeated application of the Evidence-Led Governance methodology demonstrates that a stable analytical vocabulary can be developed across multiple statutory frameworks without altering the underlying legal obligations of those frameworks.

The Canonical Definitions therefore provide methodological consistency rather than replacing statutory terminology.

Chapter Synthesis

The Canonical Definitions established in this chapter provide the common language used throughout the remainder of the handbook.

Each definition has emerged from the repeated examination of independent statutory systems rather than from abstract theory.

Accordingly, these definitions should be read as methodological tools designed to support consistent reconstruction and analysis of statutory administration.

Chapter 6 — Research Findings

6.1 Introduction

The preceding chapters established the foundations of the Evidence-Led Governance methodology. They defined the governing principles, described the research methodology, established the canonical framework, and introduced the terminology necessary for the consistent interpretation of administrative evidence.

This chapter marks a transition.

The purpose is no longer to describe how the research is conducted. The purpose is to present what the research has revealed.

The findings presented in this chapter arise from the systematic reconstruction and examination of legal authority, institutional design, administrative practice, and documentary evidence. They concern the operation of governance itself rather than any single institution, statutory framework, or administrative process.

Accordingly, this chapter records the recurring characteristics that emerged through the application of the Evidence-Led Governance methodology.

6.2 Methodological Note

The findings presented in this chapter were not predetermined.

They emerge from the repeated application of the Evidence-Led Governance methodology across reconstructed legal authority, institutional design, administrative practice, and documentary evidence.

Findings are reported only where recurring patterns are observed across the accumulated record.

They remain open to refinement, expansion, or rejection as additional evidence becomes available.

This chapter therefore records what the research has revealed, rather than what the research set out to prove.

The methodology establishes the process by which evidence is reconstructed and examined.

The findings emerge only after that process has been completed.

6.3 Finding One — Institutional Accumulation and Administrative Understanding

Core Principle

Institutions should not repeatedly rediscover what they already know.

The accumulated record consistently indicates that effective administration depends upon the accumulation of evidence into institutional understanding.

Individual documents rarely reveal administrative performance in isolation. Administrative governance becomes observable only when records are examined collectively across time and institutional responsibility.

Each administrative action forms part of a wider evidential relationship. Decisions derive meaning not solely from their individual content but from their connection to preceding records, governing authority, and subsequent administrative activity.

Where each decision builds upon previous evidence:

- institutional understanding increases;
- administrative continuity becomes observable;
- consistency becomes measurable;
- accountability becomes traceable;
- rights become progressively capable of practical realisation.

Conversely, where each interaction is treated as a new beginning:

- evidence becomes fragmented;
- institutional memory diminishes;
- repeated assessment replaces accumulated understanding;
- similar issues repeatedly reappear without organisational learning;
- governance becomes increasingly difficult to evaluate.

The first research finding therefore identifies institutional accumulation as a recurring characteristic associated with coherent administrative governance.

6.4 Characteristics of Institutional Accumulation

The accumulated evidence consistently revealed several characteristics that together constitute institutional accumulation.

Continuity

Administrative actions should build upon the existing record rather than replacing or disregarding it.

Continuity enables institutions to develop understanding through successive decisions rather than repeated rediscovery.

Traceability

Later decisions should remain explainable through the evidence that preceded them.

Administrative reasoning should therefore remain traceable across the documentary record.

Reproducibility

Independent examination of the same accumulated record should permit substantially similar conclusions regarding administrative development and governance.

Where findings cannot be reproduced from the available evidence, administrative understanding becomes uncertain.

Administrative Learning

Institutions should demonstrate increasing understanding as evidence accumulates.

Repeated assessment without corresponding institutional development indicates fragmentation rather than learning.

These characteristics repeatedly emerged across reconstructed administrative records and together describe the first research finding.

6.5 Governance Implications

Institutional accumulation is not merely an administrative convenience.

It is a characteristic of effective governance.

Where accumulation is absent, the evidence consistently indicated increased risks of:

- inconsistent administrative decision-making;
- repeated procedural engagement without substantive progression;
- duplication of assessment;
- fragmentation of institutional understanding;
- unnecessary administrative burden;
- reduced transparency;
- diminished accountability.

Conversely, where evidence accumulated through successive administrative activity, governance became progressively easier to reconstruct, interpret, and evaluate.

Administrative understanding therefore depends not only upon the existence of evidence but upon its continued relationship to subsequent administrative action.

6.6 Relationship to Evidence-Led Governance

Evidence-Led Governance treats administrative records as cumulative rather than isolated.

Individual records remain important.

Their greater significance, however, lies in their relationship to one another.

Accordingly:

- evidence is preserved;
- provenance remains intact;
- institutional understanding develops through accumulation;
- governance becomes observable through continuity;
- accountability becomes traceable across successive administrative decisions.

Administrative understanding therefore emerges from the accumulated relationship between records rather than from any individual document considered in isolation.

This relationship permits governance itself to become capable of systematic examination.

6.7 Discussion

The first research finding extends beyond any individual statutory framework.

The recurring relationship between accumulated evidence and institutional understanding was observed across multiple areas of administrative activity.

Accordingly, the finding should not be interpreted as specific to a particular institution or administrative process.

Rather, it describes a characteristic of governance itself.

Institutions become progressively capable of coherent administration where evidence accumulates into organisational understanding.

Where evidence remains fragmented, governance likewise becomes fragmented.

The significance of the finding therefore lies not in the quantity of evidence available but in the continuity of the relationships preserved between successive records.

6.8 Conclusion

The first research finding indicates that governance depends upon institutional accumulation.

The question is not whether evidence exists.

The question is whether institutions allow that evidence to become institutional understanding.

Where evidence accumulates, administrative continuity becomes observable.

Where continuity becomes observable, accountability becomes measurable.

Where accountability becomes measurable, governance itself becomes capable of systematic evaluation.

The first finding therefore establishes institutional accumulation not as an administrative preference, but as a recurring characteristic emerging from the accumulated record.

Subsequent findings continue this examination by identifying additional recurring patterns that emerge through the application of the Evidence-Led Governance methodology.

VOLUME II

Application of Evidence-Led Governance

Introduction to Volume II

Volume I established the conceptual and research foundations of Evidence-Led Governance.

It examined the relationship between evidence, institutional memory, administrative continuity, legal authority, procedural rights and accountable decision-making.

Volume II applies that methodology.

The purpose is not to select individual disputes because they appear to prove conclusions already reached.

Nor is the purpose to use case studies as illustrations for predetermined arguments.

The case-study method operates in the opposite direction.

It begins with the administrative record.

It reconstructs what happened.

It identifies the institutions involved, the functions they exercised, the information available to them, the legal frameworks within which they acted, the decisions they made, the reasons they recorded, and the mechanisms through which those decisions could be reviewed.

Only after that reconstruction may governance observations be considered.

This distinction is fundamental.

A case study within Evidence-Led Governance is therefore not principally a narrative of events.

It is a reconstruction of an administrative pathway.

The reconstruction asks:

What entered the system?

Who received it?

Under what authority?

For what institutional purpose?

What evidence existed at that point?

What decision was made?

What reasons were recorded?

What happened to the evidence afterwards?

Was the decision reviewed?

Did later institutions receive the same evidence?

Did they exercise the same function?

Did information accumulate across the pathway, or was it repeatedly encountered as though new?

These questions allow administrative systems to be examined without requiring the researcher to determine the conclusion in advance.

The governing principle remains:

The researcher does not determine the destination.

The researcher reconstructs the pathway.

Chapter 7 — Case Study Method

7.1 Purpose

Chapter 7 does not establish a separate methodology. It operationalises the Evidence-Led Governance methodology established in Volume I for application to individual administrative case studies. RM-1 to RM-5 remain controlling throughout every case-study reconstruction.

The purpose of the Evidence-Led Governance case-study method is to examine how governance operates when information enters real administrative systems.

Legal frameworks describe powers, duties, rights and procedures.

Institutional structures allocate responsibility.

Administrative processes determine how those structures operate in practice.

Documentary records preserve evidence of what actually occurred.

A case study brings those layers together.

Its purpose is not merely to establish a chronology.

It seeks to reconstruct the relationship between:

legal authority;

institutional function;

administrative action;

documentary evidence;

decision-making;

reasoning;

review;

and

institutional memory.

The method therefore examines not only what decision was eventually reached, but the pathway through which that decision became possible.

7.2 Case Study Selection

A case study should not be selected because it appears likely to prove a particular governance proposition.

Selection should instead be based upon whether the available record permits meaningful reconstruction.

Relevant considerations include:

- whether a sufficiently developed documentary record exists;
- whether institutional actors and functions can be identified;
- whether important events can be placed chronologically;
- whether decisions and their reasons are preserved;
- whether relevant legal or procedural frameworks can be identified;
- whether evidence can be traced between stages;
- whether review or escalation mechanisms can be reconstructed;
- and whether unresolved gaps can themselves be identified.

A case study need not contain a complete record.

Absence may itself be relevant.

But absence must not be replaced by assumption.

Where the evidence does not establish what happened, the reconstruction records that limitation.

7.3 Defining the Administrative Boundary

Every case study requires a defined boundary.

That boundary may be:

- a complaint;
- an application;
- an investigation;
- a regulatory process;
- a statutory decision;
- a review;
- an appeal;
- an information-access request;
- or a sequence of related administrative processes.

The boundary should be determined by the institutional function being reconstructed rather than simply by the subject matter of the underlying events.

This is necessary because the same evidence may enter several administrative systems.

For example, the same document may become relevant to:

professional regulation;

law enforcement;

freedom of information;

data protection;

administrative review;

or

judicial proceedings.

Those pathways may concern the same underlying events while asking entirely different legal questions.

They must therefore remain distinguishable.

7.4 The Reconstruction Unit

The basic unit of the case-study method is not simply the document.

It is the governed administrative event.

For each significant event, the reconstruction should seek to establish:

Date

When did the event occur?

Actor

Who performed the action or made the decision?

Institution

Within what institution did the event occur?

Function

What administrative function was being exercised?

Authority

What legal, statutory, regulatory or procedural authority governed that function?

Evidence State

What information can be established as available at that point?

Action

What happened?

Decision

Was a determination made?

Reasoning

Were reasons recorded?

Resulting State

What changed because of the action or decision?

Review

Was there a mechanism through which the action or decision could be reconsidered?

This structure prevents chronology from becoming merely a list of dates.

It reconstructs the governance significance of each event.

7.5 Evidence-State Boundaries

A central feature of the case-study method is the evidence-state boundary.

Evidence-State Boundary — the point in an administrative pathway at which the evidence demonstrably available to a decision-maker can be distinguished from evidence received before or after that decision.

A decision must be examined against the evidence that was available when the decision was made.

Evidence received afterwards must not retrospectively be treated as though it formed part of the earlier decision.

The reconstruction should therefore distinguish between:

Evidence available before Decision A

and

Evidence received after Decision A but before Decision B.

This distinction may be critical where a pathway contains several decision stages.

The method does not initially determine what consequence later evidence should have produced.

It first establishes the narrower factual question:

What evidence existed at each decision point?

Only after that boundary has been reconstructed can the significance of later evidence properly be analysed.

7.6 Provenance

Source authority is question-dependent. Primary legal authority governs propositions of law. Documentary evidence governs propositions concerning what was recorded, communicated or administratively performed. Institutional decisions establish the decisions and reasoning they contain. No category acquires authority to establish a proposition outside its evidential function.

Every documentary source should retain its origin.

A later copy does not replace the earlier source.

A summary does not replace the underlying document.

A chronology does not replace the correspondence from which the chronology was constructed.

A later institutional description of an earlier decision does not replace the original decision where that decision remains available.

Sources should therefore be treated according to their evidential function.

Where possible, the reconstruction should distinguish:

primary contemporaneous records;

institutional decisions;

subsequent institutional descriptions;

later summaries or chronologies;

researcher reconstruction;

and

analytical observation.

These categories may corroborate one another.

They should not be collapsed into one another.

7.7 Documentary Fact, Reported Claim and Finding

The case-study method requires explicit separation between different evidential propositions.

A document may establish that:

an allegation was made.

That does not establish that:

the allegation was proven.

A decision may establish that:

an institution reached a particular conclusion.

That does not necessarily establish that:

the conclusion was factually correct.

A review may establish that:

a decision was affirmed.

That does not necessarily establish that:

every reason supporting the earlier decision was affirmed.

The reconstruction must therefore distinguish among:

documentary fact;

reported allegation;

institutional finding;

legal determination;

research inference;

and

unresolved question.

This distinction is essential to evidence-led analysis.

7.8 Conflicting Evidence

Administrative records do not always agree.

Dates may differ.

Descriptions may change.

Later correspondence may characterise earlier events differently.

Records may be incomplete.

Where two credible sources contain different information, the discrepancy should ordinarily be preserved.

The researcher should not silently select the version that best fits the emerging narrative.

The correct research statement may therefore be:

Source A records 22 December.

Source B records 23 December.

The available evidence does not presently resolve the discrepancy.

Preserving disagreement is part of preserving the record.

7.9 Parallel Administrative Pathways

A single underlying episode may generate several institutional pathways.

Those pathways should initially be reconstructed independently.

Their chronology may overlap.

Their documentary evidence may overlap.

Their participants may overlap.

But their functions may remain different.

The case-study method therefore asks of each pathway:

What question was this institution actually empowered to answer?

This prevents an outcome in one process from being mistaken for an answer to a question belonging to another.

A freedom-of-information decision, for example, may determine whether information can lawfully be disclosed.

It does not necessarily determine whether the underlying administrative decision was correct.

A data-protection decision may address processing of personal information.

It does not necessarily determine the merits of a regulatory complaint.

Functional separation must therefore precede cross-pathway analysis.

7.10 Decision and Review Lineage

Administrative decisions should be reconstructed as a lineage.

Where a decision is reviewed, the reconstruction should identify:

the original decision;

the original reasons;

the review request;

the scope of review;
 the reviewing authority;
 the evidence before the reviewer;
 the review reasoning;
 and
 the review outcome.

A later affirmation should not be allowed to rewrite the earlier reasoning.

Where a reviewer reaches the same outcome for different reasons, both decision states should remain visible.

Accordingly:

Outcome affirmed

does not necessarily mean:

Every earlier reason affirmed.

Decision lineage preserves that distinction.

7.11 Unresolved Questions

An unresolved question is a legitimate research result.

The case-study method does not require every gap to be filled before reconstruction can proceed.

Instead, unresolved questions should be expressly identified.

They may arise because:

- a document has not been located;
- the available documents conflict;
- an institution did not record its reasoning;
- a later decision did not determine an earlier question;
- the available evidence establishes chronology but not causation;
- or the legal significance of an event requires separate research.

The researcher should not fill these gaps through narrative convenience.

The appropriate status is:

Unresolved pending further evidence or authority.

7.12 From Reconstruction to Governance Observation

Governance analysis begins only when the pathway, governing authority and evidential record have been sufficiently reconstructed to support it.

An observation should identify something demonstrated by the reconstructed case without claiming more than the evidence supports.

For example, a case study may demonstrate that:

- information moved between several institutions;
- different institutions applied different legal tests to overlapping evidence;
- evidence available at one decision point differed from evidence available at another;
- a review preserved the outcome while changing the reasoning;
- or documentary continuity was lost between stages.

These may become case-study observations.

They do not automatically become general Research Findings.

7.13 Case-Study Observation and Research Finding Threshold

A case-study observation is not a Research Finding.

An observation records a characteristic demonstrated within the reconstructed pathway.

A Research Finding requires recurrence across the accumulated record in accordance with the standard established in Chapter 6.

Accordingly, no proposition arising solely from one case study should be designated an RF finding unless independent evidence elsewhere in the research establishes the required recurring pattern.

Volume I distinguishes research findings from individual observations.

That distinction continues in Volume II.

A proposition emerging from one case study should ordinarily remain a case-study observation until it can be tested against additional evidence.

Where the same governance characteristic appears independently across multiple administrative pathways, the research may consider whether it has become sufficiently recurrent to support a broader finding.

The progression is therefore:

Documentary Evidence

↓

Administrative Reconstruction



Case-Study Observation



Cross-Case Comparison



Recurring Pattern



Research Finding

This prevents an individual case from being used to manufacture a general conclusion.

7.14 Case Study Output Structure

Each developed case study should, where the evidence permits, contain:

Purpose and Scope

Administrative Reconstruction

Legal Question

Authorities and Statutory Provisions

Institutional Function

Evidence-State Analysis

Institutional Reasoning

Decision and Review Lineage

Outcome

Principles Emerging from Reconstruction

Unresolved Questions

Governance Observation

Chapter Synthesis

Not every case will support every component equally.

Where evidence is absent, that absence should remain visible.

7.15 Methodological Safeguard

Every case study remains governed by the methodological disciplines established in Volume I: Reconstruction Precedes Evaluation (RM-1), Evidence Before Inference (RM-2), Independent Authority (RM-3), Traceability (RM-4), and The Researcher's Discipline (RM-5).

Their application to case studies requires the researcher to preserve provenance, identify evidence-state boundaries, distinguish institutional functions, maintain decision lineage, preserve conflicting evidence and record unresolved questions.

These controls ensure that the case study applies the methodology rather than becoming an exception to it.

7.16 Governing Principle

The application method therefore retains the governing discipline established in Volume I:

The researcher does not determine the destination.

The researcher reconstructs the pathway.

A case study begins with the record.

Governance analysis begins only when the pathway, governing authority and evidential record have been sufficiently reconstructed to support it.

Chapter 8 — Complaint, Evidence and Information Access

8.1 Purpose and Scope

This chapter applies the Evidence-Led Governance methodology to a connected sequence of administrative processes arising from complaint C397/19 before the Medical Council and the subsequent information-access process F60-2020.

The reconstruction begins with the complaint and supporting evidence submitted to the Medical Council on 2 December 2019. It follows the complaint through the Preliminary Proceedings Committee, the investigation conducted under section 59 of the Medical Practitioners Act 2007, the PPC's opinion under section 61, and the Medical Council's final decision.

It then reconstructs a second pathway arising from the same institutional record: the request under the Freedom of Information Act 2014 for correspondence received by the Medical Council from Dr Dominic Harmon, the Medical Council's FOI decision, internal review and independent review by the Office of the Information Commissioner.

The two pathways are connected by evidence but governed by different legal questions.

The complaint pathway concerned whether there was sufficient cause to warrant further action in relation to allegations concerning professional conduct or performance.

The information-access pathway concerned whether records generated or received during that complaint process could subsequently be disclosed under the Freedom of Information Act 2014.

The purpose of the chapter is not to redetermine either proceeding.

It is to reconstruct:

- what was submitted;
- what statutory process governed its consideration;
- what further information was sought or received;
- what the institutional record states was considered;
- what decisions were made;
- what records were subsequently requested;
- what was disclosed or withheld;
- what independent review determined; and
- what remains incapable of determination from the surviving record.

The case study therefore examines the relationship between evidence submission, evidence acquisition, institutional consideration, decision-making and subsequent access to the institutional record.

8.2 Medical Council Complaint Pathway — C397/19

8.2.1 Complaint and evidential context

The complaint form identified allegations concerning medical treatment and professional conduct and expressly contemplated supporting documentation.

The Medical Council's own form stated that letters or medical records capable of supporting a complaint could be enclosed. It separately explained that relevant medical records might need to be obtained in order to consider the complaint.

The form identified Barrington's Hospital, Limerick and Croom Hospital as organisations holding relevant medical records.

The Council's form further stated that it could obtain relevant medical records from healthcare providers and other relevant organisations for the purpose of investigating a complaint and that, where necessary, the Preliminary Proceedings Committee could issue a direction compelling their release.

Complaint-Form-August-2019.pdf

This is important to the subsequent reconstruction.

Medical records were not external to the complaint procedure. The Council's own complaint process expressly contemplated their acquisition and use in investigating a complaint.

8.2.2 Submission of 2 December 2019

The surviving record establishes that the Medical Council received the complaint on 2 December 2019.

The evidence was not confined to a complaint form.

The surviving submission record establishes a multi-part evidential transmission comprising five packages. The extracted material includes correspondence, medical and clinical records, prescription material, images, screenshots, an audio file, referral material and other documentary evidence.

The reconstructed packages include material relating to Barringtons and Croom, including files identified as:

Croom_19_June_2018.jpeg

and

Croom_27_August_2019.jpeg.

The reconstructed evidence also includes correspondence concerning treatment and appointments, prescription material, clinical material, a referral letter, photographs, an activity spreadsheet and an audio file.

The complaint form itself preserves a wider inventory of material associated with the complaint record, including Barringtons and Croom material, correspondence concerning Harmon and John O'Donnell,

prescriptions, clinical material, photographs, screenshots and other records. Complaint-Form-August-2019.pdf

The evidential significance at this stage is limited but important.

The surviving material establishes submission.

Submission alone does not establish how each individual item was assessed or what weight was attached to it.

8.2.3 Withdrawal and continuation

The Medical Council acknowledged the complaint by letter dated 18 December 2019.

That letter recorded that the complaint had been received on 2 December and that an email dated 13 December indicated a wish to withdraw it.

By then, however, the complaint had been processed and assigned to a case officer on 5 December 2019.

The Council explained that the matter would therefore go before the PPC on 24 January 2020.

The Council expressly invoked section 59(10) of the Medical Practitioners Act 2007, explaining that the PPC could either decide that no further action should be taken or proceed as though the complaint had not been withdrawn.

The letter further explained that, if the PPC proceeded, an investigation would follow. Letter to Mr Nicholas Moloney dated 18.12.19.pdf

The documentary record subsequently establishes that the complaint did continue.

8.2.4 PPC investigation

On 24 January 2020, the PPC considered the matter.

The Council's letter of 30 January 2020 records that the PPC formally assigned the complaint to case officer Darren Smith and directed an investigation.

The direction was specific.

Harmon was to be invited to provide any information he believed should be considered pursuant to section 59(6) of the Medical Practitioners Act 2007.

If he did not respond within a reasonable period, the case officer was directed to issue a formal notice under section 59(7) requiring him to provide information.

The Council further stated that the information obtained would be considered by the PPC and that the PPC could either form an opinion or direct further investigations. ELetter to Mr Nicholas Moloney dated 30.01.20.pdf

This establishes an important point in the decision lineage.

C397/19 had moved from complaint submission to a formally directed statutory investigation.

8.2.5 Response and continuing evidential exchange

A response dated February 2020 subsequently entered the complaint record.

In that response Harmon described the material he had received as including GP notes, prescriptions and images. He referred to his clinical relationship with the complainant, disputed the implications of the complaint and stated that a copy of medical notes would be helpful. F60-2020 Records NM.pdf

The surviving institutional record shows that correspondence and evidence continued to accumulate after the original December submission.

The eventual PPC decision letter identifies complainant correspondence and attachments dated:

2 December 2019; 13 December 2019; 20 January 2020; 24 January 2020; 27 January 2020; 23 March 2020; 6 April 2020; 22 April 2020; 5 May 2020; 5 June 2020; and 16 June 2020.

It also identifies correspondence from Harmon dated:

10 February 2020; 14 August 2020; 14 September 2020; 23 September 2020; and 18 October 2020;

together with a letter from Harmon enclosing a letter from Inspector for Superintendent Andrew Lacey dated 14 September 2020. ELetter to Mr Nicholas Moloney dated 25.11.20.pdf

The complaint record was therefore cumulative.

It was not confined to the material existing on 2 December 2019.

8.2.6 Croom records and the evidential process

The submission of Croom records must be understood within this procedural context.

The Council's complaint form had already identified Croom Hospital as a holder of relevant medical records and expressly informed complainants that medical records could be obtained for investigation and, where necessary, compelled by the PPC. Complaint-Form-August-2019.pdf

The complainant understood from the procedure that the evidential record remained capable of supplementation while the complaint was being investigated.

Croom material was supplied on that basis.

This understanding was consistent with the statutory structure subsequently examined in this chapter: section 59 expressly provided mechanisms for obtaining further information, while section 59(11) imported specified powers concerning production of records.

The evidential proposition should nevertheless remain narrow.

The record establishes that Croom material was supplied and that the complaint procedure contemplated the acquisition of medical records.

It does not follow merely from those facts that every Croom document was individually examined or relied upon by the PPC.

That is a separate question of institutional consideration.

8.2.7 Renewed section 59(7) direction

The investigation continued into September 2020.

On 18 September 2020, the Council recorded a PPC direction to issue a notice under section 59(7) requiring Harmon to respond specifically to the allegations contained in the complaint submitted on 2 December 2019.

The Council stated that information obtained during the investigation would be sent to Harmon so that he could supply information he believed should be considered.

It then stated:

“All information relating to the complaint will then be considered by the PPC...”

The PPC could thereafter form an opinion or direct further investigations. ELetter to Mr Nicholas Moloney dated 18.09.20.pdf

The significance of this correspondence is procedural.

It demonstrates the continuing operation of the section 59 investigative mechanism and records the Council’s representation that all information relating to the complaint would be considered before the PPC formed its opinion.

8.2.8 PPC opinion

The PPC considered C397/19 at its meeting on 12 November 2020.

The Medical Council’s letter of 25 November 2020 records that the Committee considered the case report and documentation relating to the matter, followed by a non-exhaustive list of correspondence and attachments received from the complainant and Harmon between December 2019 and October 2020. ELetter to Mr Nicholas Moloney dated 25.11.20.pdf

The PPC formed the opinion under section 61(1)(a) that there was not sufficient cause to warrant further action.

The stated reasoning was that there was no prima facie evidence of professional misconduct or poor professional performance.

The letter further records that the PPC took account of a Garda investigation and a formal direction that there be no prosecution and, on that basis, concluded that there was no substantiating evidence warranting further action. ELetter to Mr Nicholas Moloney dated 25.11.20.pdf

Those propositions are recorded here as the PPC’s stated reasoning.

The chapter does not convert them into an independent finding concerning the underlying allegations.

8.2.9 Final Medical Council decision

The PPC's opinion was subsequently placed before the Medical Council.

At its meeting on 2 December 2020, the Council considered the PPC opinion and decided that no further action should be taken.

The decision was communicated on 11 December 2020 and expressly described as the Medical Council's final decision. ELetter to Mr Nicholas Moloney dated 11.12.20.pdf

The complaint pathway can therefore be reconstructed as:

complaint and evidence → PPC consideration → section 59 investigation → continuing evidential exchange → PPC opinion under section 61(1)(a) → Council consideration → final decision of no further action.

8.3 Information-Access Pathway — F60-2020

8.3.1 FOI request

Before the final Council decision was communicated, a separate information-access pathway had begun.

On 30 November 2020, a request was made under the Freedom of Information Act 2014.

The request initially sought six identified items of correspondence from Harmon together with any information held about the applicant in computerised or manual form. F60-2020 Decision Letter.pdf

The timing is significant.

The FOI request arose after the PPC opinion had been communicated on 25 November but before the Medical Council's final decision was communicated on 11 December.

The complaint and information-access pathways therefore briefly overlapped chronologically.

8.3.2 Identification of the institutional record

On 4 December 2020, the Medical Council informed the applicant that a search using the original parameters had identified more than 600 pages.

The Council asked that the request be narrowed, explaining that otherwise section 15(1)(c) of the FOI Act might apply because of the volume of material requiring retrieval and examination. F60-2020 Narrow Parameters.pdf

This is itself a significant evidential fact.

By December 2020, the search conducted by the Medical Council against the original FOI parameters identified an institutional record exceeding 600 pages.

The applicant responded the same day and narrowed the request to six specified items of correspondence from Harmon.

He expressly excluded documentation and correspondence he had sent to the Council and documentation and correspondence the Council had already sent to him. Re REQUEST FOR ACCESS TO RECORDS UNDER THE FOI ACT 2014.pdf

The resulting access dispute was therefore deliberately narrow.

It was not a request for the complete C397/19 case file.

8.3.3 Records sought

The six specified records were:

1. email and attachment from Harmon dated 10 February 2020; 2. email from Harmon dated 14 August 2020; 3. email from Harmon dated 14 September 2020; 4. letter from Harmon enclosing a letter from Inspector for Superintendent Andrew Lacey dated 14 September 2020; 5. email from Harmon dated 23 September 2020; and 6. email from Harmon dated 18 October 2020. F60-2020 Decision Letter.pdf

These records correspond closely with practitioner-side material subsequently identified in the PPC's 25 November description of the documentation considered.

The complaint pathway and information-access pathway therefore intersect at identifiable documentary objects.

8.3.4 Original FOI decision

On 21 December 2020, the Medical Council issued its FOI decision.

The Council stated that although its search had identified more than 600 pages overall, 19 pages fell within the narrowed scope.

Partial access was granted.

The Council relied upon section 37(1) concerning personal information and section 35(1)(a) concerning information obtained in confidence to redact or withhold material. F60-2020 Decision Letter.pdf

The result was therefore neither complete disclosure nor complete refusal.

A portion of the institutional record became accessible while other information remained withheld.

8.4 Internal Review

The original FOI decision was challenged through the statutory internal-review process.

The request for internal review was received by the Medical Council in December 2020. On 5 January 2021, Lorna Purcell acknowledged the request, identified herself as a more senior member of staff than the original decision-maker and stated that she would conduct a full review. The acknowledgement

explained the applicable review timeframe and the subsequent right to seek review by the Office of the Information Commissioner. Internal Review Acknowledgement F60.pdf

On 12 January 2021, Purcell issued the internal-review decision.

She expressly described the review as an entirely new and separate decision. She confirmed that the narrowed request concerned six identified items of correspondence received from Harmon and determined that the original decision-maker had adequately gathered the records falling within scope — 19 pages in total.

Purcell stated that she had reviewed those records herself and affirmed the original decision. IR F60.pdf

The internal review separately considered sections 37(1) and 35(1)(a) of the Freedom of Information Act 2014.

In relation to section 37(1), Purcell concluded that withholding the doctor's name and the identities of third parties was justified. Her reasoning included the proposition that release under FOI constitutes release to the public at large and that those persons would not expect information bearing their names to be released into the public domain. IR F60.pdf

In relation to section 35(1)(a), the internal-review decision expressly identified the withheld material as information supplied by the doctor in relation to complaint C397/19.

Purcell considered the four statutory conditions for the exemption satisfied. Her recorded reasoning was that information supplied by doctors was provided confidentially; that there was an explicit understanding of confidentiality; that doctors were not informed at the outset that information supplied by them might subsequently be released publicly; that public disclosure might discourage future provision of such information; and that continued receipt of such information was important to the Medical Council's ability to perform its statutory functions. IR F60.pdf

The internal reviewer also considered the public-interest provision in section 35(3). She identified a strong public interest in preserving the Medical Council's ability to conduct effective investigations and reasoned that an inability to gather the information needed for those investigations could adversely affect the Council's statutory functions under the Medical Practitioners Act 2007. IR F60.pdf

The original FOI decision was therefore not merely affirmed as an outcome.

It was reconsidered through a fresh internal decision which expressly connected the confidentiality claimed for the records with the Medical Council's ability to obtain information for its complaint-investigation function.

The internal-review decision preserved a further right to seek independent review by the Office of the Information Commissioner.

8.5 Independent Review — OIC-102280-Z3W2H8

The applicant sought independent review by the Office of the Information Commissioner.

The review was ultimately determined by Stephen Rafferty, Senior Investigator, on 17 February 2021, under section 22(2) of the Freedom of Information Act 2014. OICDecision102 280.pdf

The OIC's jurisdiction was narrower than the underlying complaint.

It was not conducting a new investigation into the allegations against Harmon.

It was not reviewing the adequacy of the PPC investigation as a general administrative matter.

It was determining whether the Medical Council was legally entitled under the FOI Act to refuse access to the remaining withheld material.

The records at issue consisted of correspondence received by the Medical Council from the named doctor.

The OIC ultimately affirmed the refusal under section 37. OICDecision102 280.pdf

This distinction is fundamental to the reconstruction.

An independent determination concerning access to records is not an independent determination concerning the merits of the complaint recorded within those records.

8.6 Legal Question

The reconstructed case contains two principal legal questions.

Complaint pathway

The first arose under the Medical Practitioners Act 2007:

Whether, following investigation and consideration of the information relating to C397/19, there was sufficient cause to warrant further action in relation to the complaint.

The PPC answered that question by forming an opinion under section 61(1)(a) that there was not sufficient cause.

The Medical Council subsequently decided that no further action should be taken.

Information-access pathway

The second arose under the Freedom of Information Act 2014:

Whether the Medical Council was justified in withholding, wholly or partly, specified correspondence received from Harmon where disclosure would reveal personal information, joint personal information or information said to have been provided in confidence, and whether the statutory exceptions or public-interest provisions nevertheless required disclosure.

The OIC ultimately determined the access question under section 37.

These questions must remain separate.

A decision that there was insufficient cause for further professional-disciplinary action does not itself determine an FOI entitlement.

An FOI refusal based upon privacy does not itself determine whether the underlying complaint was well founded.

8.7 Authorities and Statutory Provisions

Two principal statutory frameworks governed the reconstructed pathways.

Medical Practitioners Act 2007

Part 7 of the Medical Practitioners Act 2007 governs complaints to the Preliminary Proceedings Committee.

Section 57 establishes the statutory complaint pathway and requires the PPC to make reasonable efforts to keep the complainant informed and to process complaints in a timely manner.

Section 58 permits persons appointed to assist the PPC to perform investigative functions, including interviewing persons concerning potentially relevant evidence, recording statements and requesting written statements.

Section 59 governs consideration and investigation of complaints.

Of particular importance:

- section 59(3) permits the PPC to seek further information from a complainant;
- section 59(6) permits the practitioner to supply information believed relevant;
- section 59(7) permits the PPC formally to require specified information from the practitioner;
- section 59(8) requires compliance with such a notice;
- section 59(9) requires the PPC, before forming its opinion, to consider any information supplied under section 59 concerning the complaint, together with whether the complaint is trivial, vexatious, without substance or made in bad faith;
- section 59(10) governs withdrawal of a complaint and permitted C397/19 to continue notwithstanding the attempted withdrawal; and
- section 59(11) applies section 66(1)(c), section 66(2) insofar as it concerns the production of records, and section 66(9) to the PPC and its chairperson, thereby making specified record-production provisions available within the PPC process.

This statutory architecture is consistent with the Medical Council's own complaint form, which told complainants that relevant medical records might be obtained and that the PPC could, where necessary, compel their release.

Section 60 provides a separate mechanism for seeking immediate suspension of registration where necessary for protection of the public. The surviving C397/19 record examined here does not establish that this mechanism was invoked.

Section 61 governs the PPC's reporting of an opinion where it concludes, among other possibilities, that there is insufficient cause to warrant further action.

It was under section 61(1)(a) that the PPC recorded its opinion in C397/19.

Section 62 provides for mediation or other informal resolution in appropriate circumstances.

Section 63 governs referral to the Fitness to Practise Committee where the PPC is of the opinion that there is a *prima facie* case to warrant further action, or where the Council directs further action under section 61(2)(e).

C397/19 did not proceed to that stage on the reconstructed record.

Freedom of Information Act 2014

The information-access pathway engaged:

Section 13 – decision on an FOI request.

Section 15(1)(c) – potential refusal where the number or nature of records would cause substantial and unreasonable interference with or disruption of the work of the FOI body. The Medical Council raised this provision when asking that the original request be narrowed. F60-2020 Narrow Parameters.pdf

Section 35(1)(a) – information obtained in confidence.

Section 35(3) – public-interest test applicable to information to which section 35(1) would otherwise apply.

Section 37(1) – personal information.

Section 37(2) – circumstances in which the section 37(1) exemption does not apply.

Section 37(5) – circumstances permitting release notwithstanding section 37(1), including the public-interest test.

Section 37(7) – joint personal information.

Section 22(2) – independent review by the Information Commissioner.

Section 24 – appeal to the High Court on a point of law.

The OIC also considered judicial authority concerning the distinction between private interests and a legally cognisable public interest when applying the statutory balancing exercise.

8.8 Institutional Reasoning

8.8.1 PPC reasoning

The PPC's recorded reasoning can be reconstructed from the 25 November 2020 correspondence.

It stated that it had considered the case report and documentation relating to the complaint, including but not limited to the identified complainant and practitioner correspondence accumulated between December 2019 and October 2020.

It formed the opinion that there was no prima facie evidence of professional misconduct or poor professional performance.

The PPC also referred to the Garda investigation and a formal direction that there be no prosecution.

On that basis, it stated that there was no substantiating evidence warranting further action. ELetter to Mr Nicholas Moloney dated 25.11.20.pdf

The evidential discipline required here is important.

The chapter can establish what reasons the PPC recorded.

It cannot infer from those reasons an item-by-item evidential assessment that the surviving decision does not contain.

8.8.2 FOI reasoning

The Medical Council's FOI decision took a different approach because it answered a different question.

It identified 19 pages within the narrowed request and granted partial access.

It relied upon personal-information protections under section 37 and confidentiality under section 35 for the information withheld or redacted. F60-2020 Decision Letter.pdf

8.8.3 OIC reasoning

The OIC ultimately treated section 37 as determinative.

The independent review considered the privacy interests attaching to information concerning the doctor and other persons and the public-interest provisions governing possible disclosure.

The OIC regarded disclosure under FOI as effectively disclosure to the world at large because the Act places no restrictions upon subsequent use.

The applicant's interest in obtaining the records to pursue his grievance with the doctor and Medical Council was characterised as essentially private.

The OIC concluded that no relevant public interest outweighed the privacy rights engaged and therefore affirmed refusal under section 37(1).

Having reached that conclusion, it considered it unnecessary to determine the application of sections 35 or 32. OICDecision102 280.pdf

The OIC decision also records the Medical Council's submission that the complaint had not been upheld.

That proposition retains its provenance as a Medical Council submission to the OIC rather than becoming an independent OIC determination of the merits of C397/19. OICDecision102 280.pdf

8.9 Review Outcome

The reconstructed pathways produced distinct outcomes.

Complaint outcome

On 12 November 2020, the PPC formed the opinion under section 61(1)(a) that there was insufficient cause to warrant further action. ELetter to Mr Nicholas Moloney dated 25.11.20.pdf

On 2 December 2020, the Medical Council considered that opinion and decided that no further action should be taken.

That was communicated as the Council's final decision on 11 December 2020. ELetter to Mr Nicholas Moloney dated 11.12.20.pdf

FOI outcome

On 21 December 2020, partial access was granted to the records falling within the narrowed F60-2020 request, with other information withheld or redacted under sections 35 and 37. F60-2020 Decision Letter.pdf

Following internal review, independent review was sought.

On 17 February 2021, the OIC affirmed the refusal of the remaining material under section 37. OICDecision102 280.pdf

The OIC decision identified a further statutory right of appeal to the High Court under section 24, normally on a point of law and subject to the statutory time limit. OICDecision102 280.pdf

The independent review therefore resolved an information-access question.

It did not constitute an independent merits review of C397/19.

8.10 Principles Emerging from Reconstruction

Research Finding — Evidential State Must Be Distinguished from Evidential Treatment

A document may pass through several evidential states:

submitted → received → preserved → incorporated → considered → relied upon → reflected in reasons.

Evidence of one state does not automatically establish the next.

A transmission record can establish submission.

An institutional inventory can establish possession.

A decision may establish that a category of material was considered.

Only sufficiently specific reasoning can establish how particular evidence affected the decision.

Governance Principle — Investigative Power Does Not Establish Investigative Use

The existence of statutory authority to obtain information or compel records does not establish that the authority was exercised in relation to every potentially relevant record.

Authority and exercise must be reconstructed separately.

Governance Principle — Institutional Procedure Shapes Evidential Participation

Where an institution tells a participant that additional information and medical records may be obtained and considered during an investigation, later evidential submissions must be understood within that procedural framework.

Their submission is not equivalent to their consideration, but neither are they extraneous merely because they post-date the original complaint.

Governance Principle — Distinct Procedures Determine Distinct Questions

Complaint determination and information-access review may concern the same underlying documents without deciding the same legal issue.

Their outcomes must not be collapsed into one another.

Governance Principle — Access Review Is Not Merits Review

An independent finding that information is exempt from disclosure does not constitute an independent determination of the allegations contained within or associated with that information.

Governance Principle — Partial Disclosure Reveals the Boundary of the Accessible Record

A partial-access decision establishes that the institutional record extends beyond what has been disclosed.

The resulting evidential distinction is between:

record known to exist and record available for independent examination.

Governance Principle — Institutional Statements Retain Provenance

A proposition communicated by one institution and repeated within another institution's decision remains attributable to its originating source unless the second institution independently determines it.

Governance Principle — Reasons Define the Observable Decision

A decision can be evaluated only to the extent that its reasoning is preserved.

Where an institution states that a body of documentation was considered but does not identify how particular records affected the outcome, the researcher may establish consideration at the stated level but should not reconstruct an evidential weighting that the decision itself does not disclose.

8.11 Unresolved Questions

The reconstruction has resolved several questions that were initially open.

The existence and broad composition of the 2 December 2019 evidence submission can now be reconstructed from the surviving packages.

The statutory basis upon which the PPC could seek further information and obtain records can also be identified.

The actual section 59 investigation directions are preserved.

The correspondence identified by the PPC as having been considered is recorded.

The PPC opinion and final Medical Council decision are known.

The FOI and independent-review outcomes are also known.

The remaining questions are consequently narrower.

The present record does not yet establish precisely:

- whether every file transmitted within the five evidence packages on 2 December 2019 was successfully received, extracted, opened and incorporated into the operative C397/19 case record;
- whether an item-level institutional inventory was created for those five packages;
- how each individual item within the December submission was evaluated;
- whether, and in what manner, the Croom medical records identified at the commencement of the complaint and subsequently supplied by the complainant were incorporated into the material considered by the PPC when forming its section 61(1)(a) opinion;
- whether the PPC itself obtained additional Croom or other clinical records through the statutory mechanisms available under section 59(11), as distinct from records supplied by the complainant;
- what evidential weight, if any, was assigned to particular clinical records, correspondence, images or audio material;
- how conflicting accounts within the accumulated record were individually evaluated;
- what the complete case report placed before the PPC on 12 November 2020 contained;
- whether internal analysis or deliberative records exist that would further explain the transition from the accumulated evidential record to the stated conclusion of insufficient cause;
- the complete reasoning applied during the Medical Council's internal FOI review beyond the outcome preserved in the subsequent independent-review record; and
- whether the more-than-600-page record identified during the original F60-2020 search corresponds completely with the institutional record used in the C397/19 decision process.

These questions are not findings of omission.

They are evidential boundaries.

They identify propositions that the surviving record examined so far does not permit the researcher to determine.

8.12 Governance Observation

C397/19 demonstrates why administrative evidence cannot be analysed solely by asking whether a document exists.

The statutory architecture permitted evidence to enter the process through several routes.

The complainant could submit evidence.

The PPC could request additional information.

The practitioner could provide information.

The PPC could formally require information from the practitioner.

Specified statutory powers concerning production of records were also available.

The investigation could continue as information accumulated.

The eventual decision nevertheless required that accumulated material to pass through another institutional transformation:

evidence had to become reasoning.

The surviving record demonstrates considerable accumulation.

The original complaint generated multiple evidence packages.

Further correspondence and attachments followed.

The practitioner responded.

Further statutory investigation was directed.

The PPC's final correspondence records consideration of a substantial sequence of documentation.

The later FOI search identified more than 600 pages against the original search parameters. F60-2020 Narrow Parameters.pdf

Yet accumulation and explanation are different characteristics of governance.

The surviving decision identifies the material considered at a categorical and chronological level and records the conclusion reached.

It does not provide an item-by-item explanation of how the accumulated evidence was evaluated.

The subsequent FOI pathway then exposes a second boundary.

Records generated within an administrative procedure may be relevant to understanding that procedure while simultaneously being protected from unrestricted disclosure by another statutory regime.

The result is not a simple conflict between transparency and secrecy.

It is a relationship between:

participation; evidence; investigative authority; institutional accumulation; decision reasoning; privacy; access; and independent review.

Evidence-Led Governance requires each of those relationships to remain visible without treating one as a substitute for another.

The complaint decision establishes what the institution decided.

The FOI decision establishes what could be disclosed.

The OIC decision establishes whether the remaining withholding was lawful under the provision it determined.

None, considered alone, reconstructs the complete administrative pathway.

The pathway becomes observable only when the records are related.

8.13 Chapter Synthesis

This case study began with a complaint and an accumulated evidential submission.

The complaint entered a statutory process governed by Part 7 of the Medical Practitioners Act 2007.

The surviving record establishes that the PPC did not merely receive the complaint.

It considered whether to continue after attempted withdrawal, directed an investigation, invoked the information-gathering mechanisms of section 59, received further material, directed a later section 59(7) response and ultimately formed an opinion under section 61(1)(a).

The PPC recorded that it had considered the case report and a substantial body of documentation accumulated between December 2019 and October 2020.

It concluded that there was insufficient cause to warrant further action.

The Medical Council subsequently decided that no further action should be taken.

A second pathway then tested access to part of the institutional record.

The initial FOI search identified more than 600 pages.

The request was narrowed to six identified pieces of correspondence from Harmon.

Nineteen pages were identified as falling within that narrowed scope.

Partial access was granted and other information withheld.

The withholding survived internal review and was ultimately affirmed by the Office of the Information Commissioner under section 37 of the Freedom of Information Act 2014.

The reconstruction therefore establishes three different forms of institutional knowledge.

The complaint record shows what entered and accumulated within the professional-regulatory process.

The decision record shows what the institution states it considered and the reasons it recorded for its conclusion.

The information-access record shows what part of that institutional record could subsequently be obtained and independently examined.

They overlap.

They are not identical.

The central governance observation arising from the case is therefore not that evidence was absent.

The record demonstrates substantial evidential accumulation.

The more precise question is whether the relationship between evidence received, evidence considered and reasons given remains sufficiently traceable for the resulting administrative decision to be reconstructed.

That question cannot be answered by filling gaps with inference.

It can only be answered by continuing to reconstruct the record.

The case study therefore demonstrates the governing discipline established in Volume I and operationalised in Chapter 7:

The researcher does not determine the destination.

The researcher reconstructs the pathway.

And in this case, reconstruction reveals that accountability depends not merely upon preserving evidence or preserving a decision.

It depends upon preserving the relationship between evidence and decision.